

Arbitration Order was served on Defendant – or even *if* it was served – there can be no argument that his Motion is untimely. The clock never began ticking.

Yet, Defendant fails to provide a satisfactory explanation about why he could not provide any evidence of the arbitration clause of the agreement in the Original Motion.

There's no evidence that Plaintiff failed or neglected to provide this information after a valid request from the Defendant. Yet even assuming that were the case, Defendant concedes that this information was publicly available, and he can offer no explanation why he did not provide this publicly available information to support his Original Motion.

In sum, the Defendant has not met his burden of showing reasonable diligence.

Disposition

Motion to Reconsider is Denied.

The court will file the Order and serve parties with a copy of the filed Order.

13. 9:00 AM CASE NUMBER: L25-11680

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. LINDSEY GUAY

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to dismiss the default judgment because Plaintiff learned, subsequent to filing the default judgment, that Defendant had filed for bankruptcy.

The Motion was served on Defendant by mail at an address where Defendant was served with process by virtue of substitute service.

Plaintiff cites Section 473(d) of the CCP as the basis for the vacating the judgment and dismissing the matter. But this section applies to judgments that are otherwise void, and it is not clear that the mere act of filing for bankruptcy renders a collections judgment void.

However, since no prejudice will flow to the Defendant – and, in fact, Defendant certainly stands to benefit from Plaintiff’s request – the court will grant the Motion and dismiss the matter w/out prejudice.

Disposition

Plaintiff’s Motion is granted.

Matter is dismissed.

Plaintiff shall submit the order.

14. 9:00 AM CASE NUMBER: L25-13162
CASE NAME: BANK OF AMERICA, N.A. VS. GABRIELLE WORLEY
***HEARING ON MOTION IN RE: TO VACATE JUDGMENT**
FILED BY: WORLEY, GABRIELLE J
TENTATIVE RULING:

Background

Defendant filed this Motion on 3/4/26, to vacate the default judgment, citing sections 582.5 and 473(b) of the CCP. No proof of service on the Plaintiff of the Motion has been filed.

Plaintiff, however, filed a Response in opposition on 5/8/26, and filed a proof service indicating mail service on the Defendant on the same day.

Default Judgment was filed 3/3/26.

Defendant has not filed a Reply.

Analysis

In the instant matter, it doesn’t appear that the parties followed service deadlines. Though Plaintiff appears to have filed their Response late (it must be filed and served at least 9 court days before the hearing), it is not clear that Defendant followed notice rules either, since they did not file a proof of service.

Though Defendant has a right to Reply to the Plaintiff’s response, they have not had the appropriate amount of time in which to do so, since the Response was not timely. So, it may be that Defendant intends to Reply but has not had the requisite time to do so; or, the Defendant may not wish to Reply at all.

Thus, the court is left with two options. The parties appear on 5/19/26, at 9am, and waive any notice issues, and the court will hear any further argument on 5/19/26, and render a decision.

Or, the court will simply continue the matter.